

**STATE OF CALIFORNIA
CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD,
LOS ANGELES REGION**

**ORDER NO. 00-053
WASTE DISCHARGE REQUIREMENTS
FOR
TIVOLI COVE HOMEOWNERS ASSOCIATION
Tivoli Cove Wastewater Treatment Plant
(File No. 71-057)**

The California Regional Water Quality Control Board, Los Angeles Region (Regional Board) finds:

1. The Tivoli Cove Homeowners Association, previously Malibu Cedars-Latigo Bay Villa (hereinafter Discharger) operates the Tivoli Cove Wastewater Treatment Plant (Plant), located at 26665 Seagull Way, Malibu, California. This Plant treats domestic wastewater from an estimated population of 200 people residing in a 124 unit apartment complex located at 26665 Seagull Way, Malibu.
2. On January 23, 1995, the Regional Board adopted Order No. 95-017, specifying requirements for discharge of domestic wastewater from the Plant to groundwater. The California Water Code, Section 13263(e), provides that all requirements shall be reviewed periodically and, upon such review, may be revised by the Regional Board. Following a review of requirements in Order No. 95-017, and inspections of the Plant, these requirements have been revised to include additional findings, limits, provisions, prohibitions, and a revised monitoring and reporting program.
3. The Discharger operates a package type activated sludge wastewater treatment plant with a design capacity of 45,000 gallons per day (gpd). Treated wastewater is discharged to the groundwater through a leachfield disposal system. An average daily dry weather flow of up to 19,800 gpd of wastewater is discharged to the leachfield disposal system.
4. The Plant, including the leachfield disposal system, is located in Section 6, Township 2S, Range 18W (San Bernardino Base & Meridian). The Plant's approximate latitude is 34° 02' 27" and a longitude of 118° 44' 53". The Plant is located on a beach, within 55 feet of the Pacific Ocean.
5. The Plant was designed to produce secondary-level wastewater for discharge to groundwater, as summarized below.
 - a) Primary and secondary treatment consists of a bar screen, a comminutor, a 30,000-gallon equalization tank, an aeration chamber with activated sludge, a secondary clarifier, and a single media sand filter.

May 3, 2000

- b) Following secondary treatment, the wastewater is filtered through sand filters, and then discharged to a leachfield disposal system onsite. The filters were not designed to produce a tertiary effluent that would meet current reclamation requirements. The current function of the filters is to enhance infiltration of the effluent into the leachfield disposal system.
 - c) Waste sludge is hauled offsite for disposal and final treatment at the Hyperion Wastewater Treatment Plant, owned and operated by the City of Los Angeles.
 - d) In case of emergency, treated and/or untreated wastewater can be held in a 60,000 gallon holding tank for processing or for discharge.
6. The site is located in an unsewered area of the City of Malibu (City). Single family homes within the Malibu area rely upon individual septic tanks. No public sewers have been scheduled for construction in the vicinity of the site. The City currently does not provide centralized or package wastewater collection and treatment utilities; rather, the City primarily relies upon septic systems (on-site disposal systems) for disposal of domestic, residential and commercial wastewaters.
7. Order No. 95-017 did not contain requirements for:
- Removal of Pathogens: Pathogens from the effluent prior to discharge to the leachfield disposal system. At this time, the Discharger is not able to quantify any impacts, if any, to groundwater or to nearby surface water. The Discharger proposes to upgrade the Plant to meet the proposed limits in this Order for fecal coliform. The Discharger will be required to monitor for total coliform and fecal coliform in accordance with the Monitoring and Reporting Program No. CI 5731.
 - Surface Water Monitoring: A surface water monitoring program shall be established, so that ocean water in the Pacific Ocean Nearshore Zone may be sampled and analyzed to determine if discharges from the Plant have impacted or are impacting water quality.
 - Ground Water Monitoring: A groundwater monitoring program would help evaluate impacts from the Plant on groundwater beneath the facility. However, groundwater monitoring is not being required at this time, since the Plant is within 55 feet of the Pacific Ocean, effluent from the leachfield is likely in hydraulic connection with surface water. Also, riprap present between the leachfield and the high tide line precludes the installation of groundwater monitoring wells. However, surface water monitoring will be required to monitor impacts, if any from the Plant discharge.

8. The Regional Board adopted a revised *Water Quality Control Plan for the Los Angeles Region (Basin Plan)* on June 13, 1994. *The Basin Plan* designates beneficial uses of waters, and establishes water quality objectives for the protection of beneficial uses.
9. Discharges from the Plant infiltrate groundwater, and are likely in hydraulic connection with the beach. The Plant and the leachfield disposal system are located in the Latigo Canyon Hydrologic Subarea and overlie the Malibu Valley Groundwater Basin. Existing beneficial uses designated for groundwater include agricultural supply and potential municipal and industrial supply. With regard to the use of groundwater, there are no public water wells downgradient of the Plant.
10. All residents and facilities within Los Angeles County Waterworks District No.29, receive water from the Metropolitan Water District of Southern California through the West Basin Municipal Water District.
11. The Plant discharges lie within close proximity (55 feet) to the Pacific Ocean. Groundwater underlying the Plant is likely to be in hydraulic connection with the Pacific Ocean. Beneficial uses designated for these surface waters include, among others: contact and non-contact water recreation; marine habitat, and shellfish harvesting. A Water Quality Assessment, adopted by this Regional Board on May 18, 1998, identified beaches along the Santa Monica Bay (including the Malibu area) as impaired by pathogens and nutrients.
12. All requirements contained in this Order, as they are met, will be in conformance with the goals and objectives of the Water Quality Control Plan, with the possible exception of pathogens. The Discharger does not presently monitor levels of pathogens in discharges from the Plant. In accordance with tentative Time Schedule Order 00-054, the Discharger will upgrade the treatment system at the Plant to add disinfection capabilities, as groundwater beneath the Plant may be in hydraulic connection with beaches downgradient of the Plant.
13. This project involves an existing facility and, as such, is exempt from the provisions of the California Environmental Quality Act (Public Resources Code, Section 2100 et seq.), in accordance with California Code of Regulations, Title 14, Chapter 3, Section 15301.

The Regional Board has notified the Discharger and interested agencies and persons of its intent to revise Waste Discharge Requirements for this discharge, and has provided them with an opportunity to submit their views and recommendations for the tentative requirements.

The Regional Board, in a public meeting, heard and considered all comments pertaining to the discharge and to the tentative requirements.

IT IS HEREBY ORDERED that Tivoli Cove Homeowners Association (Discharger) shall comply with the following:

A. INFLUENT LIMITATIONS

1. Waste discharged shall be limited to treated domestic wastewater only. No water softener regeneration brines, commercial, or industrial wastewaters shall be discharged to sewers that flow to the Plant.
2. The maximum daily flow of influent from the collection system to the Plant shall not exceed maximum design flow of 45,000 gpd and this flow limitation also applies to treated effluent discharged to the leachfield disposal system.

B. EFFLUENT LIMITATIONS

1. The pH of wastes discharged shall at all times be between 6.5 to 8.5 pH units.
2. The wastewater discharged to the leachfield disposal system shall be oxidized, clarified, and filtered,^(a) and shall not contain constituents in excess of the following limits:

<u>Monthly</u> <u>Constituent</u>	<u>Units</u>	<u>Average</u>	<u>Maximum</u>
BOD ₅	mg/L	30	45
Suspended solids	mg/L	30	45
Turbidity	NTU	10	15
Oil and grease	mg/L	--	15
Fecal coliform ^(b)	MPN/100mL	--	200
Enterococcus ^(c)	cfu/100mL	24	104

(a) Oxidized wastewater means wastewater in which the organic matter has been stabilized and is nonputrescible, and which contains dissolved oxygen.

(b) The limits for coliform shall apply after filtration, prior to discharge of the effluent into the leachfields disposal system.

(c) Enterococcus limit is based on geometric mean of at least 5 equally spaced samples in any 30-day period.

3. The wastewater discharged to the leachfields shall not contain salts, heavy metals, or organic pollutants at levels that would impact groundwater used for irrigation or groundwater in hydraulic connection with surface waters designated for contact and non contact water recreation.

4. Any wastes that do not meet the foregoing requirements shall be held in impervious containers, and discharged at a legal point of disposal.
5. There shall be no discharge of wastes to surface water or watercourses at any time.

C. PROVISIONS

1. The Discharger shall file with the Regional Board technical reports on self-monitoring work performed according to the detailed specifications contained in Monitoring and Reporting Program No. 5731, as directed by the Executive Officer. The results of any monitoring done more frequently than required at the location and/or times specified in the Monitoring and Reporting Program shall be reported to the Regional Board. Monitoring and Reporting Program No. 5731 contains requirements, among others, specifying surface water monitoring. A surface water monitoring program shall be established so that surface water (Pacific Ocean) in the immediate vicinity of the site, may be measured, sampled, and analyzed to determine if discharges from the Plant have impacted or are impacting water quality. Submittal of a plan for monitoring surface water, which is subject to the approval of the Executive Officer, is due by June 1, 2000.
2. In accordance with tentative Time Schedule Order No. 00-054, the Discharger shall upgrade the Plant to meet the fecal coliform requirement specified above, prior to discharge into the leachfield disposal system.
3. Standby or emergency power facilities and/or storage capacity or other means shall be provided so that in the event of plant upset or outage due to power failure or other cause, discharge of raw or inadequately treated sewage does not occur.
4. The Discharger shall notify this Regional Board within 24 hours of any adverse condition resulting from the discharge of wastewater from this facility; written confirmation shall follow within one week. This information shall be confirmed in the next monitoring report. In addition, the report shall also include the reasons for the violations or adverse conditions, the steps being taken to correct the problem (including dates thereof), and the steps being taken to prevent a recurrence.
5. The Discharger shall notify the Regional Board immediately, by telephone, of any bypassing or surfacing of wastes. Written confirmation shall follow within one week and shall include information relative to the location(s), estimated volume, date and time, duration, cause, and remedial measures taken to effect cleanup and measures taken to prevent any recurrence.

6. This Order does not alleviate the responsibility of the Discharger to obtain other necessary local, state, and federal permits to construct facilities necessary for compliance with this Order; nor does this Order prevent imposition of additional standards, requirements, or conditions by any other regulatory agency.
7. Any discharge of wastewater from the Plant (including wastewater collection system) at any point other than specifically described in this Order is prohibited, and constitutes a violation of the Order.
8. After notice and opportunity for a hearing, this Order may be terminated or modified for causes including, but not limited, to:
 - a) Violation of any term or condition contained in this Order;
 - b) Obtaining this Order by misrepresentation, or failure to disclose all relevant facts;
 - c) A change in any condition that requires either a temporary or permanent reduction or elimination of the authorized discharge.
9. The Discharger shall furnish, within a reasonable time, any information the Regional Board may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this Order. The Discharger shall also furnish to the Regional Board, upon request, copies of records required to be kept by this Order.
10. The Discharger shall file a written report with this Regional Board within 90 days after the average dry weather waste flow for any month equals or exceeds 76 percent of the design capacity of the treatment plant, and leachfield disposal system. The report shall detail provisions to cope with flows in excess of that figure.
11. Should monitoring data indicate impacts to groundwater or nearby surface water, the Discharger shall submit, within 90 days after determination of the problem, plans for measures that will be taken, or have been taken, to mitigate any long-term effects that may result from the subsurface disposal of wastes.
12. This Order includes "Standard Provisions Applicable to Waste Discharge Requirements." If there is any conflict between provisions stated herein and the "Standard Provisions," those provisions stated herein will prevail.

D. PROHIBITIONS

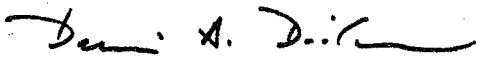
1. The Discharger shall not allow any additional hookups to the Plant. However, in the event that the City, County, and local developers coordinate wastewater management efforts and propose to resize this Plant, to allow hookup of nearby residences, the Regional Board will reconsider this prohibition.
2. There shall be no sanitary sewer overflows or discharge of wastes to waters of the state (including storm drains and groundwater) at any time.
3. No part of the treatment plant shall be closer than 150 feet to any water well.
4. Until the Discharger upgrades the Plant to meet the fecal coliform limit in this Order, the leachfield disposal system shall not extend to within 10 feet of the historic or anticipated high level of the water table. Upon installation of disinfection equipment and compliance with fecal coliform requirements in this Order, as well as compliance with all other requirements in this Order, the Discharger will not need to comply with this requirement for a minimum vertical separation between the leachfields disposal system and the water table. The Discharger must submit certification that the treatment plant and leachfield disposal system meet this requirement.
5. Wastes shall not be disposed of in geologically unstable areas or so as to cause earth movement.
6. Wastes discharged shall not impart tastes, odors, color, foaming or other objectionable characteristics to the receiving water.
7. There shall be no onsite disposal of sludge. Any offsite disposal of sewage or sludge shall be made only to a legal point of disposal. For purposes of this Order, a legal disposal site is one for which requirements have been established by a California Regional Water Quality Control Board, and which is in full compliance therewith. Any sewage or sludge handling shall be in such a manner as to prevent its reaching surface waters or watercourses.
8. Adequate facilities shall be provided to divert surface and storm water away from the wastewater treatment plant and leachfields disposal system and from areas where any potential pollutants are stored.

9. The Plant, including the sewers that are a part of the Plant and the leachfields disposal system, shall be maintained in such a manner that at no time will sewage be permitted to surface or overflow at any location.
10. Odors of sewage origin shall not be detectable beyond the property owned or controlled by the Discharger.
11. The Plant, including the leachfields disposal system, shall be protected from damage by storm flows or runoff generated by a 100-year storm.
12. Wastes discharged shall at no time contain any substance in concentrations toxic to human, plant, or aquatic life.
13. Neither the treatment nor the discharge of waste shall create a condition of pollution, contamination, nuisance or problems due to breeding of mosquitoes, gnats, midges, flies, or other pests.

E. RESCISSION

Order No.95-017, adopted by this Board on January 23, 1995, is hereby rescinded.

I, Dennis A. Dickerson, Executive Officer, do hereby certify that the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Los Angeles Region, on April 13, 2000.



Dennis A. Dickerson
Executive Officer

**STATE OF CALIFORNIA
CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LOS ANGELES REGION**

**MONITORING AND REPORTING PROGRAM NO. CI. 5731
FOR
TIVOLI COVE HOMEOWNERS ASSOCIATION
(Tivoli Cove Wastewater Treatment Plant)
(File No. 71-057)**

The Tivoli Cove Homeowners Association (hereinafter Discharger) shall implement this monitoring program for the Tivoli Cove Wastewater Treatment Plant (hereinafter Plant) on the effective date of this Order. Monitoring reports shall be submitted by the dates in the following schedule:

<u>Reporting Period</u>	<u>Report due</u>
January - March	April 30
April - June	July 30
July - September	October 30
October - December	January 30

The first monitoring report under this program shall be submitted by July 30, 2000.

By January 30th of each year, beginning January 30, 2001, the Discharger shall submit an annual report to the Board. The report shall contain summaries of the monitoring data obtained during the previous year calendar year. In addition, the Discharger shall discuss its compliance record and corrective actions taken or planned, which may be required to bring the discharge into full compliance with the Waste Discharge Requirements.

Water Quality Monitoring

A. Influent Monitoring

The Discharger shall measure the monthly average and maximum daily waste flow from the Plant's collection system at the headworks. In addition, at the end of each annual reporting period, the Discharger shall update the population estimate in the apartment complex by the Plant.

B. Effluent Monitoring

Unless specified otherwise, a sampling station shall be established at a location where representative samples of treated wastewater can be obtained prior to discharge to the leachfields disposal system. The following shall constitute the effluent monitoring program:

May 3, 2000

Effluent Monitoring (continued)

<u>Constituent</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Minimum Frequency of Analysis</u>
Total Flow	gal/day	recorder	continual
pH	pH units	grab	weekly
Turbidity	NTU	recorder	continual
Total dissolved Solids	mg/L	composite	monthly
Suspended solids	mg/L	composite	monthly
BOD ₅ 20°C	mg/L	composite	monthly
Total coliform	MPN/100mL	grab	weekly
Fecal coliform	MPN/100mL	grab	weekly
Enterococcus	cfu/100mL	grab	weekly
Oil and grease	mg/L	grab	monthly
Nitrate-N	mg/L	grab	monthly
Nitrite-N	mg/L	grab	monthly
Ammonia-N	mg/L	grab	monthly
Organic nitrogen	mg/L	grab	monthly
Phosphorus	mg/L	composite	monthly
Surfactants	mg/L	composite	monthly
Chlorine	mg/L	grab	monthly
Priority pollutant scan	ug/L	grab	annual ¹

¹Priority Pollutants are listed on Page 6

C. Surface Water Monitoring

Surface water monitoring program must be implemented to detect and evaluate impacts from wastewater discharges through the leachfields disposal system. Samples from the Pacific Ocean Nearshore Zone shall be collected and analyzed. In addition, a dye test shall be conducted in order to verify the degree of connection between the leachfield and surface water. Los Angeles County Environmental Health's weekly ocean water quality sampling data may be included in the Discharger's surface water monitoring reports, provided the sampling location is directly downgradient from the Discharger's leachfield disposal system. The following shall constitute the surface water monitoring program:

Surface Water Monitoring (Continued)

<u>Constituent</u>	<u>Units</u>	<u>Minimum Frequency of Analysis</u>
Total Coliform	MPN/100mL	monthly
Fecal coliform	MPN/100mL	monthly
Enterococcus	cfu/100mL	monthly

Surface water monitoring reports must include the following information:

- a) Sample location, including dates and time sampled
- b) Sampler identification and laboratory used
- c) Water temperature
- d) Water elevation (tide)
- e) Direction of current

General Provisions for Sampling and Analysis

All chemical, bacteriological, and toxicity analysis shall be conducted at a laboratory certified for such analysis by the State Department of Health Services Environmental Laboratory Accreditation Program, or approved by the Executive Officer. Laboratory analysis must follow methods approved by the United States Environmental Protection Agency (USEPA), and the laboratory must meet USEPA Quality Assurance/Quality Control criteria. Analytical data reported as "less than" or below the detection limit for the purpose of reporting compliance with limitations, shall be reported as "less than" a numerical value or "below the detection limit" for that particular analytical method (also giving the numerical detection limit).

General Provisions for Reporting

The Discharger shall identify all instances of non-compliance and shall submit a statement of the actions undertaken, or proposed, that will bring the discharge into full compliance with requirements at the earliest time and submit a timetable for correction. The quarterly reports shall contain the following information:

- a. A statement relative to compliance with discharge specifications during the reporting period.
- b. Results of daily observations in the disposal area for any overflow or surfacing of wastes, other visible effects of the waste discharge, and odor effects.

Wastes Hauling Reporting

In the event that waste sludge or other wastes are hauled offsite, the name and address of the hauler shall be reported, along with types and quantities hauled during the reporting period and the location of final point of disposal. In the event that no wastes are hauled during the reporting period, a statement to that effect shall be submitted.

Operation and Maintenance Report

The Discharger shall file a technical report with this Board, not later than 30 days after receipt of these Waste Discharge Requirements, relative to the operation and maintenance program for this facility. The information to be contained in the report shall include, at a minimum, the following:

- a. The name and address of the person or company responsible for operation and maintenance of the facility.
- b. Type of maintenance (preventive or corrective).
- c. Frequency of maintenance, if preventive.

Certification Statement

Each report shall contain the following completed declaration:

"I certify under penalty of law that this document and all attachment were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted.

Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information for knowing violations., including the possibility, of a fine and prisonment for knowing violations".

Executed on the ___ day of _____, 20___
at _____

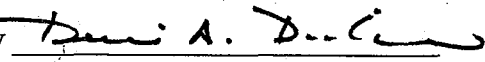
_____(Signature)

_____(Title)

Tivoli Cove Homeowners Association
Monitoring and Reporting Program No. CI 5731

Tivoli Cove Wastewater Treatment Plant
Page 5

These records and reports are public documents and shall be made available for inspection during normal business hours at the office of the California Regional Water Quality Control Board, Los Angeles Region.

Order by 
Dennis A. Dickerson
Executive Officer

Date: April 13, 2000

PRIORITY POLLUTANTS

Metals

Antimony
Arsenic
Beryllium
Cadmium
Chromium
Copper
Lead
Mercury
Nickel
Selenium
Silver
Thallium
Zinc

Miscellaneous

Cyanide
Asbestos (only if
specifically
required)

Pesticides & PCBs

Aldrin
Chlordane
Dieldrin
4,4'-DDT
4,4'-DDE
4,4'-DDD
Alpha-endosulfan
Beta-endosulfan
Endosulfan sulfate
Endrin
Endrin aldehyde
Heptachlor
Heptachlor epoxide
Alpha-BHC
Beta-BHC
Gamma-BHC
Delta-BHC
Toxaphene
PCB 1016
PCB 1221
PCB 1232
PCB 1242
PCB 1248
PCB 1254
PCB 1260

Base/Neutral Extractibles

Acenaphthene
Benzidine
1,2,4-trichlorobenzene
Hexachlorobenzene
Hexachloroethane
Bis(2-chloroethyl) ether
2-chloronaphthalene
1,2-dichlorobenzene
1,3-dichlorobenzene
1,4-dichlorobenzene
3,3'-dichlorobenzidine
2,4-dinitrotoluene
2,6-dinitrotoluene
1,2-diphenylhydrazine
Fluoranthene
4-chlorophenyl phenyl ether
4-bromophenyl phenyl ether
Bis(2-chloroisopropyl) ether
Bis(2-chloroethoxy) methane
Hexachlorobutadiene
Hexachlorocyclopentadiene
Isophorone
Naphthalene
Nitrobenzene
N-nitrosodimethylamine
N-nitrosodi-n-propylamine
N-nitrosodiphenylamine
Bis (2-ethylhexyl) phthalate
Butyl benzyl phthalate
Di-n-butyl phthalate
Di-n-octyl phthalate
Diethyl phthalate
Dimethyl phthalate
Benzo(a) anthracene
Benzo(a) pyrene
Benzo(b) fluoranthene
Benzo(k) fluoranthene
Chrysene
Acenaphthylene
Anthracene
1,12-benzoperylene
Fluorene
Phenanthrene
1,2,5,6-dibenzanthracene
Indeno (1,2,3-cd) pyrene
Pyrene
TCDD

Acid Extractibles

2,4,6-trichlorophenol
P-chloro-m-cresol
2-chlorophenol
2,4-dichlorophenol
2,4-dimethylphenol
2-nitrophenol
4-nitrophenol
2,4-dinitrophenol
4,6-dinitro-o-cresol
Pentachlorophenol
Phenol

Volatile Organics

Acrolein
Acrylonitrile
Benzene
Carbon tetrachloride
Chlorobenzene
1,2-dichloroethane
1,1,1-trichloroethane
1,1-dichloroethane
1,1,2-trichloroethane
1,1,2,2-tetrachloroethane
Chloroethane
Chloroform
1,1-dichloroethylene
1,2-trans-dichloroethylene
1,2-dichloropropane
1,2-dichloropropylene
Ethylbenzene
Methylene chloride
Methyl chloride
Methyl bromide
Bromoform
Bromodichloromethane
Dibromochloromethane
Tetrachloroethylene
Toluene
Trichloroethylene
Vinyl chloride
2-chloroethyl vinyl ether
Xylene